



DORY PH, INC.

Partner : _____

Contract No : _____

PARTNERSHIP AGREEMENT

This **Partnership Agreement** (the "**Agreement**") is made and entered this day of _____ by and between :

DORY PH, INC., a company organized and existing under the laws of the Republic of the Philippines with registered address at 2nd Floor, Castelo Building, Roxas, Isabela, 3320 (hereinafter referred to as "**Dory Delivery**");

- and -

_____, a company/sole proprietor organized and existing under the laws of the Republic of the Philippines with registered address at _____

represented herein by its _____,
(hereinafter referred to as the "**Partner/City Operator**").

(Dory Delivery and the Partner shall hereinafter be individually referred to as a "**Party**" and collectively as the "**Parties**" as the context may require.)

Clause 1. Recitals

- 1.1 Dory Delivery, a logistics services company, aims to expand its service coverage to ensure prompt delivery for its customers. To achieve this goal, Dory Delivery seeks to collaborate with partners who can help maintain and expand the services that align with the standards set by Dory Delivery.
- 1.2 The Partner has sufficient capital, resources, permits, and ability to undertake the delivery services (the "**Services**") and has acknowledged full understanding of the operating conditions, model, business philosophy and specification of Dory Delivery.
- 1.3 This Agreement shall be read together with the **Terms and Conditions** (provided in the website) and the **Dory Delivery Manual** (collectively, the "**Agreement**"), as may be amended from time to time. The Agreement shall prevail over any other agreements, terms and conditions, pre-

contractual negotiations and any other matters addressed herein. The Partner agrees to be bound by this Agreement, including any changes published by Dory Delivery from time to time without need of any prior notice.

NOW, THEREFORE, for and in consideration of the above premises, the Parties have agreed to enter into this Agreement subject to the specific terms and conditions hereinafter set forth.

Clause 2. Term

This Agreement shall be for a period of one (1) year, starting on _____ and ending on _____ (the "**Term**"). Within thirty (30) days prior to the expiration of the Term, unless earlier terminated in accordance with this Agreement, the Partner shall notify Dory Delivery of its intention to renew the Agreement for another one (1) year. For purposes of the renewal, the Partner shall submit complete and updated documentary requirements and other documents as required by Dory Delivery.

Clause 3. Platform Fee

3.1 Upon execution of the Agreement, the Partner shall pay Dory Delivery a one-time platform fee in the amount of Philippine Peso: Forty-Nine Thousand Nine Hundred Eighty (PhP 49,980.00) ("**Platform Fee**").

Promotional Price: Dory Delivery may, at its sole discretion, offer a promotional platform fee of Philippine Peso:

Nineteen Thousand Nine Hundred Eighty (PhP 19,980.00) ("**Promotional Price**") for a limited time.

Disclaimer: Dory Delivery reserves the right to modify, suspend, or terminate any promotional pricing at any time without prior notice, at its sole discretion.

Clause 4. Rights Granted to the Partner

4.1 Subject to the limitations and instructions by Dory Delivery, Dory Delivery grants the Partner a non-exclusive right to use the trademarks and branding of Dory Delivery for external signs, and promotions ("**Branding**"). The right to use shall be coterminous with the Agreement.

4.2 Dory Delivery authorizes the Partner to use Dory Delivery' Systems (the "**Systems**") to the extent necessary for the performance of the Services by

the Partner. The Partner undertakes to use the Systems in accordance with the guidelines and limitations set out in **Annex A** (the “**System Usage**”). Dory Delivery shall provide the Partner any and all assistance necessary (including training on Dory Delivery’ operational guidelines) to ensure the proper usage of the Systems.

- 4.3 Dory Delivery may provide training to the Partner before it officially commences business (as well as centralized training during the Term). All training materials shall be compiled by Dory Delivery, and its intellectual property rights belong to Dory Delivery.
- 4.4 Dory Delivery may (but shall not be obliged to) provide/assist the Partner with the following:
 - a. appoint the Partner’s location as authorized partner of Dory Delivery;
 - b. provide a customer service email (at the cost of the Partner) or any means of communication as available or provided by Dory Delivery for any enquiries;
 - c. provide marketing budget and materials for the area; and
 - d. pay the commission to the Partner as a consideration for carrying out the Services, subject to the Partner’s faithful compliance with the Agreement (at the sole discretion of Dory Delivery).

Clause 5. Scope of the Service and Obligations of the Partner

- 5.1 In providing the Service, the Partner shall abide by all the terms of service of Dory Delivery, including all the service standards, timelines, and Branding of Dory Delivery (as may be amended from time to time), and such other terms as may be published by Dory Delivery from time to time. The Partner shall be liable for the violations of any terms and conditions laid down under this Agreement, including the specific violations and penalties provided in the **Operation Manual**, and in Dory Delivery’ website which can be accessed at <https://dorydelivery.com>. If a Partner wishes to change or adopt any other special promotion other than what has been previously authorized by Dory Delivery, the Partner is obligated to notify and secure the written approval of Dory Delivery prior to any publication or adoption of any such change/s or special promotion. At the sole discretion of Dory Delivery, the Partner may be given an additional period of thirty (30) days from receipt of a written letter-request (in the form of an email) for extension to submit the documentary requirements required hereunder. Any additional time provided by Dory Delivery to the Partner shall not, in any way, be construed as a waiver of any other breach and/or default already incurred by the Partner.

- 5.2 The Partner shall not transfer or assign any of its rights and obligations under this Agreement without the prior written consent of Dory Delivery.
- 5.3 The Partner shall be responsible for all taxes attributable to the Service. This shall include the imposition, declaration, and remittance of the applicable taxes relative to the Partner's revenue/income. The Partner shall hold Dory Delivery free and harmless from any tax liability attributable to its provision of the Services.
- 5.4 As an independent business, the Partner shall be responsible for its overall revenue and shall be responsible for developing customer sources in accordance with the terms of this Agreement.
- 5.5 The Partner shall collect and deliver the goods in accordance with the service standards established by Dory Delivery. The Partner shall accept Dory Delivery's inspection of the service quality during the period, and shall accept relevant penalties from Dory Delivery and make corrections for violations of Dory Delivery's service standards. In the case of damage, the Partner shall bear the compensation liability arising from the delay or damage of the goods delivered by the customer, without prejudice to any other right that Dory Delivery may exercise in law, contract, or tort.
- 5.6 The Partner agrees to operate 365 days with affordable rates and quality service. In the event that the Partner wishes to close the store and not to operate for a certain day/s due to any circumstances, the Partner shall notify Dory Delivery in writing at least ten (10) days prior to the intended date of close-store and the same shall be approved by the latter. In case of emergency, the Partner must communicate and report the incident to Dory Delivery immediately (within 24 hours) after the occurrence or discovery of the same to protect the brand image of Dory Delivery.
- 5.7 The Partner represents and warrants that it has the full power and authority, and is not acting as an agent for or on behalf of a third party, to undertake the obligations set forth in this Agreement, and that it has not entered into any other agreement, nor will it enter into any other agreement, that would render it incapable of satisfactorily performing its obligations hereunder or that would place it in a position of conflict of interest or be inconsistent with its obligations hereunder.
- 5.8 In the instance of termination or expiration of this Agreement, the Partner shall not, for the next two (2) years thereafter, engage in or be involved in the same business or industry as the Dory Delivery.

- 5.9 Follow the business philosophy of "customer first" and practice the service guidelines of "meet all reasonable requirements of customers". Publicly announce service types, service prices, business hours, and delivery time limits, so as to achieve integrity management, harmony and win-win results.
- 5.10 Ensure uniformity on dress code, reporting number, facade, materials, and provide customers with professional and high-quality Services, and guaranteed convenient and thoughtful Service.
- 5.11 Ensure that the time limit for delivery of items meets the time limit requirements specified by industry standards of Dory Delivery.
- 5.12 Ensure that the items are accurately delivered to the agreed recipient address and recipient.
- 5.13 Handle customer complaints in a timely manner. Absolutely abide by the regulations of resolving all disputes with customers first, and then handle them according to the internal regulations of the network; when receiving regular complaints or service calls, reply within half an hour, and resolve within 24 hours.
- 5.14 Attending of trainings, cooperate with Dory Delivery to carry out various publicity and educational activities, and complete the tasks and reporting tasks assigned by Dory Delivery ensure compliance with the new rules and regulations formulated by the headquarters based on market development research in the future.
- 5.15 The Partner agrees to provide delivery services as an independent contractor using the Company's platform. The services may include picking up and delivering goods, food, or other items to customers.
- 5.16 The Partner is responsible for providing their own vehicle and any other necessary equipment or tools required to perform the delivery services. The Partner will also be responsible for any expenses incurred while providing services, such as fuel, maintenance, insurance and phone data charges.

Clause 6. Value Added Services ("VAS")

- 6.1 In addition to the Service, the Partner may also provide the VAS in accordance with the terms set by Dory Delivery
- 6.2 The Partner likewise undertakes to obtain, maintain, and comply in all

material respects with all required authorizations [including permits and licenses from the relevant government agencies, including the Department of Information and Communications Technology ("DICT")] and comply with the requirements of all relevant regulatory authorities.

- 6.3 Any rider registered by the partner must possess a valid license and vehicle registration. Any damages resulting from non-compliance with this requirement may result in the termination of the Partner's account.

Clause 7. Termination and Modification

- 7.1 Either Party may pre-terminate this Agreement in accordance with the following:

- a. The Partner may pre-terminate this Agreement by providing written notice to Dory Delivery thirty (30) days prior to the intended date of termination. Dory Delivery shall review said notice and shall require the Partner to submit documentation to show any pending transactions or such other relevant documents or termination materials. In the meantime, the Partner shall remain responsible for all items received and for all claims, liabilities and obligations already incurred.
- b. Dory Delivery may terminate this Agreement by providing written notice to the Partner thirty (30) days prior to the intended date of termination.

- 7.2 The following shall be grounds for the immediate termination of this Agreement by Dory Delivery:

- a. The Partner's property or part thereof used for the provision of the Service and the VAS becomes subject of expropriation or any litigation; or
- b. The Partner becomes insolvent or has commenced bankruptcy or dissolution proceedings; or
- c. The Partner is convicted of a felony, a crime involving moral turpitude, or any crime or offense that is reasonably likely, in the sole opinion of Dory Delivery, to materially and unfavorably affect the Marks, Dory Delivery' brand name(s), goodwill or reputation thereof;
- d. The Partner defaults on any amounts due to Dory Delivery and other related payments despite written notice from Dory Delivery; or

- e. The Partner intentionally or negligently discloses to any unauthorized person the contents of or any part of the Dory Delivery's Operation Manual or any other trade secrets or Confidential Information of Dory Delivery. The Partner violates any of the terms and conditions set out in this Agreement and/or in Dory Delivery's System or website (as those terms and conditions may be amended from time to time). Any other event which Dory Delivery reasonably believes that the Partner is in breach of any terms and conditions as stated in this Agreement and/or Dory Delivery's Operation Manual.

- f. Non-Activity of Partner Operations:

The Partner shall at all times maintain an **Active Account** in accordance with the following requirements:

Probationary Period (First Three [3] Months):

By the third (3rd) month of the probationary period, counted from the date of execution of this Agreement, the Partner must have completed a minimum of ten (10) delivered transactions within that month in order to be deemed active.

Succeeding Months (Post-Probation):

After the probationary period, the Partner shall continue to complete at least ten (10) delivered transactions per month to maintain active account status.

Consecutive Non-Compliance:

Failure of the Partner to comply with the foregoing minimum requirement for two (2) consecutive months shall automatically constitute grounds for the termination of this Agreement, without need of further notice.

Clause 8. Liabilities and Indemnities

- 8.1 The Partner shall be liable for loss or damage to the items from the time it has received it until the same are delivered or handed over to Dory Delivery and/or to Dory Delivery's customer.
- 8.2 The Partner shall be liable to Dory Delivery and shall indemnify the latter for any and all costs, penalties, and damages arising from any act or omission of the Partner. The Partner shall likewise be liable to Dory Delivery for any reputational damage it (or any of its officers, employees or agents) may cause to Dory Delivery.

- 8.3 The Partner shall be liable to Dory Delivery for any and all costs, penalties and damages arising from any breach by the Partner of any terms and conditions in this Agreement, or for accepting items in violation of the process, packaging guidelines or prohibited items list or for any other liability to third persons.
- 8.4 Dory Delivery's liability for claims arising out of, resulting from, or in any way connected with this Agreement shall be limited to the amounts actually paid by the Dory Delivery allocable to the Services or the VAS involved in the claim for three (3) months preceding the event or events first giving rise to such claim. In no event shall Dory Delivery be liable to the Partner for any contingent, indirect, incidental, consequential, extra-contractual or exemplary or punitive damages, or for damages for lost sales or profits or cost of cover, regardless of whether the Partner has been advised of the possibility of such damages. The limitations above apply to all causes of action in the aggregate, whether based in contract, tort (including negligence) or any other legal theory (including strict liability). Under no circumstances shall Dory Delivery be liable for any losses incurred attributable to any electronic data transfers, unless such losses result from the gross negligence or willful misconduct of Dory Delivery.

Clause 9. Territorial Lock-Up

The Parties agree that there shall be only one partner per city or municipality for the provision of services outlined in this contract. In the event that a designated partner fails to operate within a specific city or municipality for a continuous period of three (3) months without prior written consent from both parties, Dory Delivery reserves the right to assign the said area to another partner without liability or compensation to the non-operating partner.

Any such assignment shall be communicated to the non-operating partner via written notice sent to the address provided in this contract, and the rights and obligations under this contract for the specified area shall transfer to the newly assigned partner upon receipt of the written notice.

Clause 10. Management Prerogative and Marketing Strategies

The Partner acknowledges and agrees that Dory Delivery holds the sole management prerogative regarding all business operations and marketing

strategies. Dory Delivery reserves the right to modify, alter, or change any marketing strategies, plans, or initiatives at its discretion. The Partner understands and accepts that such changes may occur from time to time and agrees to comply with and support these changes as part of their partnership with Dory Delivery. The Partner further acknowledges that these adjustments are vital for the ongoing improvement and success of the business and agrees to cooperate fully in implementing any such changes.

Clause 11. Area of Operation

Partner agrees to operate exclusively within the municipality/s listed below;

Partners shall not conduct business outside of the listed municipalities without prior written consent from both parties. Any expansion of operations beyond the listed municipalities shall require an amendment to this contract, executed in writing by authorized representatives of both parties. Failure to comply with this clause may result in termination of this contract at the discretion of Dory Delivery, without liability for any losses incurred by the non-complying partner.

Clause 12. Confidentiality

Unless otherwise previously consented to in writing by Dory Delivery (Disclosing Party), all Confidential Information shall be treated with utmost confidentiality and not be divulged or shared by the Partner (Receiving Party) with any third party during or after the termination or expiration of this Agreement, and the fact of negotiation and execution hereof. The Partner shall procure its representatives or agents to comply with this provision. This undertaking shall survive the termination of this Agreement. The Receiving Party agrees that it shall:

- a. use the Confidential Information solely for the purpose of undertaking its responsibilities under this Agreement;
- b. not disclose the Confidential Information to any other Person except to such of its representatives or agents who have a need to know for the purpose of undertaking more performing its responsibilities under this Agreement and who have been properly briefed regarding the restrictions on the use and disclosure;

- c. take proper care and all reasonable measures to minimize the risk of unauthorized disclosure or use of the Confidential Information with at least the same standard of care as it applies to its own Confidential Information;
- d. promptly return to the Disclosing Party or destroy and certify such destruction of all copies of the Confidential Information upon request by the Disclosing Party;
- e. promptly notify the Disclosing Party if he or she becomes aware of a breach or potential breach of this clause; and
- f. not publicize or release any information in relation to or about this Agreement, without the Disclosing Party's prior written consent.

These undertakings shall survive the termination of this Agreement. Both Parties acknowledge that damages may not be an adequate remedy for any breach of this clause and that the Disclosing Party shall be entitled to seek injunctive or other equitable relief for any threatened or actual breach hereof.

Clause 13. Compliance with Privacy Laws.

In any case where the Receiving Party and/or its representatives will access, handle or use any data that relate to or identify any natural person ("**Personal Data**") in connection with its dealings with the Disclosing Party, the Receiving Party and/or its representatives undertake to:

- a. comply with the Data Privacy Act of 2012, its implementing regulations, and other Applicable Laws and the Disclosing Party's Privacy Policies and Data Sharing Agreement which can be accessed at <https://www.dorydelivery.com>;
- b. access, handle, and use such Personal Data only as needed in order to perform its obligations under this Agreement or in order to comply with applicable laws or court orders;
- c. follow any instructions provided by the Disclosing Party relating to compliance with any applicable laws, court orders, or self-regulatory programs applicable to the collection, use, and disclosure of Personal Data;
- d. maintain commercially reasonable policies and procedures to protect the privacy, integrity, and confidentiality of such Personal Data;

- e. immediately notify the Disclosing Party in the event of any breach of the security of such Personal Data, and cooperate with the Disclosing Party (or any third person) in any post-breach investigation or remediation efforts;
- f. promptly notify the Disclosing Party in the event it is required by the applicable laws, court order, warrant, subpoena, or other legal or judicial process to disclose any such Personal Data to any person;
- g. return or destroy all such Personal Data immediately upon the termination of this Agreement, or at any time during the term of this Agreement upon written instructions from the Disclosing Party.

Clause 14. Non-Refundable Platform Fee

- a. **Payment of Platform Fee:** The Partner agrees to pay the Company a platform fee as outlined in the Clause 3 of this Contract. The platform fee may be paid in full or in installments, as agreed upon by both Parties in the Payment Schedule.
- b. **Non-Refundability:** The Partner acknowledges and agrees that once the platform fee, either in whole or in part, has been paid to Dory Delivery, it shall be considered fully earned by Dory Delivery and non-refundable under any circumstances. This includes, but is not limited to, the discontinuation of services by the Partner, or any other circumstances that may arise following the payment of the platform fee.

Clause 15. Partner Commission

The Partner shall earn income from the Dory Delivery platform through the following commission channels:

1. **Personal Delivery Earnings** – Earn up to **85%** of the delivery fee for orders personally completed by the Partner.
2. **Team Delivery Bonus** – Earn a bonus commission from team rider deliveries, based on the rate set by the Partner in the dashboard and the performance of the riders within the priority window set by Dory Delivery.
3. **Product Mark-Up Commission** – The Partner shall earn up to **10% mark-up** on products from all merchants available and affiliated with Dory Delivery within the Partner's assigned area, subject to platform guidelines and approval.
4. **Customer Referral Bonus** – For every customer who signs up using the Partner's unique referral link, the Partner shall earn **5% of the delivery fee**

each time that referred customer places an order through the Dory Delivery platform.

Dory Delivery reserves the right to review and adjust commission structures and conditions with prior notice.

Clause 16. Dispute Resolution

This Agreement shall be construed in accordance with Philippine laws. In case of dispute, the Parties shall endeavor to resolve the matter within 90 days. If the same cannot be resolved, the Parties agree to submit to the exclusive jurisdiction of the proper courts of Roxas, Isabela to the exclusion of all other courts.

Clause 17. Others

This Agreement may be executed in one or more counterparts (including electronically) each of which shall be deemed an original and all of which together shall be deemed to be one and the same instrument.

IN WITNESS WHEREOF, the Parties have signed this Agreement on the date and place above written.

DORY PH, INC.

PARTNER

REPUBLIC OF THE PHILIPPINES)
) S.S.

ACKNOWLEDGMENT

BEFORE ME, a Notary Public for and in_____, this ____day of _____, personally appeared the following:

Name	Valid ID/Date and Place of Issuance/Expiry

known to me and to me known to be the same persons executed the foregoing Agreement, and they acknowledged that the same is their free and voluntary act and deed as well as the principals they represent.

WITNESS MY HAND AND SEAL, this ____day of _____in the place first above mentioned.

Doc. No. ____;
Page No. ____;
Book No. ____;
Series of ____.

SYSTEM USAGE

1. **Authorized Users:** Only authorized users listed in the contract are permitted to access the system. Any unauthorized access is strictly prohibited.
2. **Access Control:** Partners are responsible for maintaining the confidentiality of their login credentials and ensuring that unauthorized individuals do not access the system using their account.
3. **Acceptable Use:** Partners agree to use the system solely for the purpose outlined in the contract and in compliance with all applicable laws and regulations. Any use of the system for illegal, unethical, or unauthorized purposes is strictly prohibited.
4. **Data Protection:** Partners must adhere to all data protection and privacy laws applicable to the information accessed or processed through the system. They are responsible for ensuring the security and confidentiality of any data they handle within the system.
5. **System Integrity:** Partners are prohibited from attempting to disrupt or interfere with the normal operation of the system, including but not limited to hacking, introducing viruses or malware, or any other actions that may compromise the integrity or security of the system.
6. **Usage Monitoring:** The system may be monitored for usage patterns, performance, and security purposes. Partners consent to such monitoring and acknowledge that their activities within the system may be recorded and analyzed.
7. **Reporting of Issues:** Partners agree to promptly report any suspected security breaches, unauthorized access, or system malfunctions to the appropriate authorities as specified in the contract.
8. **Intellectual Property:** Partners acknowledge that the system and any associated software, documentation, or materials are the proprietary intellectual property of Dory Delivery. Partners may not reproduce, distribute, or modify any part of the system without prior written consent.
9. **Termination of Access:** Access to the system may be terminated or suspended at any time, with or without cause, at the discretion of Dory Delivery. Upon termination, partners must cease all use of the system and return any materials or information obtained through the system as specified in the contract.
10. **Indemnification:** Partners agree to indemnify and hold harmless Dory Delivery from any claims, damages, or losses arising out of their use of the system in violation of the terms outlined in the contract.
11. **Amendments:** The terms and conditions of system usage outlined in the contract may be amended or updated by the contract owner from time to time. Partners will be notified of any changes, and continued use of the system constitutes acceptance of the amended term